The POSH law at a glance

Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, and the Rules, 2013

WHAT THE ACT PROHIBITS

Section 2(n) includes any one or more unwelcome acts or behaviour, directly or by implication: (i) physical contact and advances; (ii) a demand or request for sexual favours; (iii) sexually coloured remarks; (iv) showing pornography; (v) any other unwelcome physical, verbal or non-verbal conduct of a sexual nature. One limb is enough.

Section 3 forbids sexual harassment of a woman at any workplace. Where linked to such conduct, section 3(2) also names a promise of preferential treatment, a threat of detrimental treatment, a threat about her present or future employment, interference with her work or a hostile, intimidating or offensive environment, and humiliating treatment likely to affect her health or safety. The list is not closed.

Unwelcome is judged from her experience. His claim that it was a joke, a compliment, or culture does not decide it. Welcome can be withdrawn. Silence towards someone who controls her work is not the same as consent. A single serious act can be enough.

WHO, AND WHERE

An aggrieved woman is a woman of any age, whether employed or not, who alleges sexual harassment by the respondent (section 2(a)). The Act's complaint right is hers. An organisation may still set conduct rules for everyone.

Employee includes regular, temporary, ad hoc and daily-wage work, directly or through a contractor, paid or unpaid, and a co-worker, contract worker, probationer, trainee or apprentice (section 2(f)).

Workplace includes public and private establishments, hospitals, sports venues, any place visited arising out of or during employment, including transport provided for that journey, and a dwelling place or house (section 2(o)). A respondent is the person complained against and need not be on the payroll (section 2(m)).

Ten or more workers: an Internal Committee, by written order, at every administrative unit or office (section 4). Fewer than ten: the Local Committee (sections 2(p) and 6).

INTERNAL COMMITTEE

Presiding Officer: a woman employed at a senior level. If that office has none, she is nominated from another office or unit, or, if needed, from another workplace of the same employer or another organisation.

Not less than two employee members, preferably committed to the cause of women or with experience in social work or legal knowledge. One external member from an NGO or association committed to the cause of women, or a person familiar with sexual harassment, paid the prescribed fees or allowances. At least one-half of the members shall be women.

Tenure of the Presiding Officer and every member shall not exceed three years. A member is removed for breach of section 16, conviction or a pending criminal inquiry, guilt or pending disciplinary proceedings, or abuse of position prejudicial to the public interest. The vacancy is filled by fresh nomination.

Where Rule 7 applies, the quorum is three members including the Presiding Officer. The parties shall not be represented by a legal practitioner. The inquiry follows natural justice.

COMPLAINT, INQUIRY, TIME

A written complaint within three months of the incident, or of the last in a series. The Committee may extend that by up to three months, for reasons recorded in writing (section 9). If she cannot write, the Presiding Officer or a member must help her. If she cannot complain because of physical or mental incapacity or death, Rule 6 states who may file, with her written consent, or her legal heir's, where the Rule requires it.

Conciliation only at her request, and before the inquiry. No monetary settlement shall be its basis (section 10). If a recorded settlement is not honoured, the inquiry proceeds.

Where Rule 7 applies: one copy of the complaint goes to the respondent within seven working days; his reply is due within ten working days. The inquiry may be closed ex parte, or terminated, only if a party misses three consecutive hearings without sufficient cause, and only after fifteen days' written notice.

The inquiry is completed within ninety days (section 11). The report goes to the employer, or the District Officer, within ten days and is made available to the parties (section 13). The employer acts within sixty days. An appeal lies within ninety days of the recommendations (section 18).

RELIEF, FINDINGS, REDRESSAL

On her written request during the inquiry, the Committee may recommend transfer of either person, leave of up to three months in addition to the leave she already has, or other prescribed relief. Rule 8 includes restraining the respondent from reporting on her work performance or, in an educational institution, from supervising her academic activity (section 12). These measures are protective. They are not a punishment before the finding.

If the allegation is proved, the Committee recommends action for misconduct under the service rules or, where none exist, under Rule 9: a written apology, warning, reprimand or censure, withholding of promotion, withholding of a pay rise or increment, termination, counselling, or community service. It may also recommend compensation under section 15, having regard to her trauma and distress, loss of career opportunity, medical expenses, his income, and whether payment can be made in a lump sum or in instalments.

If the allegation is not proved, the Committee recommends that no action is required. That is not a finding of malice.

MALICIOUS COMPLAINTS, AND CONFIDENTIALITY

Section 14 allows a recommendation of action only where the inquiry concludes that the allegation was malicious, or the complaint was made knowing it to be false, or a forged or misleading document was produced. Malicious intent must be established after an inquiry before any action is recommended. A mere inability to substantiate a complaint, or to provide adequate proof, need not attract action. False evidence by a witness is dealt with separately under section 14(2).

Section 16, which overrides the Right to Information Act, forbids publishing or making known the complaint, the identity and addresses of the woman, the respondent and the witnesses, information about conciliation and the inquiry, the recommendations, and the action taken. The fact that justice was secured may be shared, without any particular that could identify the aggrieved woman or the witnesses. A person entrusted with the matter who breaches section 16 faces service-rule action or, under Rule 12, recovery of Rs 5,000. An Internal Committee member who contravenes section 16 is removed under section 4(5). Giving the respondent the case he has to meet is fairness, not publicity.

EMPLOYER, CRIMINAL LAW, WHERE TO GO

Section 19 requires a safe workplace, display of the penal consequences and the order constituting the Committee, workshops, support to the Committee, help if she chooses a criminal complaint, and treatment of sexual harassment as misconduct. The Committee reports each year to the employer and the District Officer (sections 21 and 22). Section 26: a fine up to Rs 50,000. A later conviction for the same offence can mean twice that, and a licence or registration may be cancelled or not renewed.

A criminal case can run alongside the inquiry. From 1 July 2024 the Bharatiya Nyaya Sanhita covers these harms, including sections 75 (sexual harassment), 77 (voyeurism, including sharing an image she did not agree to share), 78 (stalking) and 79. Information Technology Act sections 66E, 67 and 67A can apply to images. Penal Code references in the 2013 Act are read with the new code. For a domestic worker, the Local Committee forwards the complaint to the police within seven days if a prima facie case exists.

She may write to the Internal Committee, or to the Local Committee where there is none. SHe-Box (shebox.wcd.gov.in) forwards a complaint to the Committee she indicates. It does not replace the inquiry.